LAZARUS ZINDOGA
versus
THE STATE

HIGH COURT OF ZIMBABWE
TAKUVA & CHIKOWERO JJ
HARARE; 20 February and 18 May 2026

Criminal Appeal

Appellant in person
T Mapfiwa, for the respondent

CHIKOWERO J:

[1] This is an appeal from the whole judgment of the Magistrates Court sitting at Harare convicting the appellant of one count of rape as defined in s 65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] and the sentence of 20 years imprisonment.

[2] The appellant, a 32-year-old widower, was found to have raped his 11 year old daughter sometime in 2024 in Waterfalls, Harare.

[3] The conviction was predicated on the lower Court's assessment of the complainant and a social worker as credible witnesses and the contents of a medical report which spoke to complainant having been penetrated per varginum.

[4] The respondent opposes the appeal against the conviction but concedes the appeal against the sentence.

[5] Since the appellant urges us to disturb the lower Court's assessment of the complainant and the social worker as credible witnesses, we do well to bear in mind the law on the role of an appellate court where it is invited to disregard credibility findings made by a lower court. In *S* v *Mlambo* 1994 (2) ZLR 410 (S) GUBBAY CJ said at 413C:

> "The assessment of the credibility of a witness is par excellence the province of the trial court and ought not to be disregarded by the appellate court unless satisfied that it defies reason and common sense."

See also *S* v *Chingurume* 2012(2) ZLR 260 (H) and *Kereke* v *Maramwidze* and Anor SC 53/24.

[6] The complainant gave a plausible explanation for the non-timeous disclosure not only of the offence but also of the identity of the offender. The offender was her own father. He had threatened her not to disclose, reminding her that he was her only surviving parent. The complainant's mother had died at the time that the offence was committed. Given the relationship between the victim and the abuser, coupled with the threat, the age of the complainant and that her vulnerability had been compounded by the death of her mother, there is nothing illogical in the lower Court's finding that the late disclosure of both the offence and the identity of the perpetrator had been satisfactorily explained. Indeed, *S* v *Musumhiri* 2014 (2) ZLR 223 (H) cautions us that there is no standard reaction to rape. There, TSANGA J said at 227 D-E:

> "The requirements to be met by a rape complainant as set out in *S* v *Nyirenda* HB 86/03 should therefore not be divorced from the cultural context that might contribute heavily to swift action not being pursued. A young girl who has been raped may not make a voluntary report because her cultural context makes it difficult for her to do so without being re-victimized. She may fail to report without delay as expected by the law because in her lived reality she has no idea if she will receive support or condemnation, if not eternal damnation. She may not report to the first person she could reasonably be expected to report for fear of being reduced to a liar and a tease."

[7] The threat issued to the complainant by the appellant was still operating in her mind when she initially named her 14 year old niece as the offender. A medical examination was instigated by the appellant himself (and conducted on the complainant). It reflected that the complainant had been penetrated per varginum as evidenced by three healed hymnal tears. In assessing the evidence, the lower court found that the fact that the hymenl tears were healed exonerated the niece and gave credence to the complainant's testimony. In other words, the lower court accepted the complainant's evidence that the appellant had raped her well before the medical examination hence the healed hymenal tears recorded in the medical report. Put differently, if it were true that the 14 year old niece had penetrated the complainant per varginum, the hymenal tears should have been fresh when the complainant was medically examined since that examination was close in terms of time to the naming of the niece as the perpetrator.

[8] We record here that the complainant, even after having been overawed by the appellant's influence to name her niece as the perpetrator, failed to open up to the prosecution when taken to court for an interview relative to what appears to have been presented as a case of aggravated indecent assault against the niece.

[9] It was only after the complainant had been removed from the appellant's Mother's residence (where the offence was found to have occurred), placed in the care of a child protection officer and even then after six or seven counselling sessions that she told the social worker that the niece had not penetrated the complainant's vagina but that it was the appellant who had raped her. The lower court found that the social worker (who was called by the prosecution) was a credible witness . She was an independent witness. Her interaction with the complainant was confined to the former doing her job. She had no reason for influencing the complainant to falsely incriminate her remaining parent. It will be recalled that even that social worker did not hit the ground running, so to speak, with the complainant. It was only after six or seven counselling sessions that the complainant made the disclosure to that witness. In these circumstances, the lower court was correct to find that the complainant freely and voluntarily made the rape disclosure to the social worker. The appellant's contention that the social worker influenced the complainant to fabricate a rape allegation against him is without support on the evidence on record.

[10] This we say also. It was common cause both at the trial and before us that there was no bad blood between the appellant and the complainant. What this means is that the lower court was correct to find that the only reason why the complainant was adamant that her own father had raped her was that he had done so.

[11] The complainant refuted all suggestions made to her by the appellant at the trial that his male relatives, also living at his mother's house, had sexually ravished her. As observed a quo, the complainant named the appellant as the perpetrator at a time when she was no longer staying at his mother's house. This means she could have named any one of those male relatives as the perpetrator, had she chosen to do so, without any consequence to herself. The reason why she did not do that was that none of those male relatives was the perpetrator.

[12] The medical report was adequate evidence that the complainant was sexually ravished. There was no need to call the author of that report. Neither the medical report nor the author thereof could furnish the identity of the person and organ that penetrated the complainant. That was taken care of by the testimony of the complainant.

[13] At the end of the day, on a reading of the record, we perceive of no basis to interfere with the lower court's finding that the complainant and the social worker

were credible witnesses. The threshold for appellate interference with the credibility finding has not been met.

[14] Equally, the lower court was satisfied that the appellant was a poor witness. It recorded that the reason why he was all over the place even at a time when the police were investigating the matter was that he was endeavoring to cover up his culpability by pretending to be a caring father.

[15] We do not accept the concession made by the respondent as regards the appeal against the sentence. The statutory penalty for rape is imprisonment for life or any definite period of imprisonment of not less than 15 years where the offence is committed in aggravating circumstances. The presumptive penalty for rape committed in aggravating circumstances is 20 years imprisonment.

[16] This offence was committed in aggravating circumstances. The appellant raped his own daughter. She was vulnerable not only because of her gender and age but also because she was still struggling to come to terms with the death of her mother when the appellant sexually ravished her. Even though no portion of the sentence was suspended on account of the appellant's status as a first offender the sentence itself is no more than the presumptive penalty for rape committed in aggravating circumstances. The sentence does not shock us.

[17] The appeal is dismissed in its entirety.

CHIKOWERO J:……

TAKUVA J:……

I agree

The National Prosecuting Authority, respondent's legal practitioners.